

KNOW YOUR RIGHTS

Legal Notice & Procedural Compliance Brief

1. Document Summary

Category: Police & Criminal Process

Sub-type: Bank account freezing notice in connection with FIR investigation (criminal breach of trust and cheating)

Assessment: This is a police directive issued by the Economic Offences Wing freezing a bank account during the investigation of an FIR involving criminal allegations, which falls squarely within police and criminal process notices related to investigation proceedings.

Severity of Procedural Compliance Violations

 **Critical — Rights Likely Violated**



2. Procedural Compliance Findings

Blanket freeze under 106/107 BNSS restricted to disputed amount [High Court trend]

Status: **Non-Compliant**

Entire account frozen. High Courts (Karnataka, Kerala, Bombay) have held blanket freezes disproportionate.

Seizure/freeze intimated forthwith to Magistrate [S.106 BNSS]

Status: **Non-Compliant**

No record of intimation to Magistrate. S.106 BNSS requires forthwith intimation.

Attachment/freeze authorized via Section 107 BNSS court intimation

Status: **May be Non-Compliant**

No legal section was cited to justify this freeze at all. Account/property attachment is supposed to proceed under Section 107 BNSS with Magistrate intimation. A freeze effected without invoking this process, on bare police request alone, may be illegal.

Account holder intimated of freeze

Status: **Non-Compliant**

Account holder not intimated. Freeze discovered only at bank/ATM violated basic notice principles.

Overall Assessment: 4 defect(s) found or suspected in freeze procedure. Freeze may be legally vulnerable.

3. Missing or Unclear Information

- No legal section or statutory authority cited for the account freeze order
- No breakdown or calculation provided for the alleged loss of Rs. 3,20,000/-

- Entire account balance frozen despite specific alleged loss amount of Rs. 3,20,000/- being stated
- No reference to whether the account holder (Mr. Anupam Bhattacharjee) has been informed of the freeze
- No indication that the Magistrate has been intimated of the freeze as required by procedure
- No explicit deadline stated for bank's written compliance confirmation
- No supporting documents or evidence attached or referenced to substantiate the allegations
- Authority and standing of the Inspector to issue a freeze order without citing statutory basis is unclear

5. Documents to Gather

- Copy of the FIR (if registered)
- Any written notice received from police (Section 35/41A, Section 94/91)
- Identity proof
- Names and badge numbers of investigating officers, if known
- Any prior correspondence with the police station

This brief is generated by an automated analysis tool and does not constitute legal advice. Findings marked 'May be Non-Compliant' are inferences drawn from the absence of information in the source document, not confirmed violations. Consult a qualified advocate before taking any legal action.